

24SMCV03113 24SMCV03113

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Case Number: 24SMCV03113 Hearing Date: August 27, 2026 Dept: P

Tentative

Ruling

O., et

al. v. Global-Dining, et al., Case No. 24SMCV03113

Global-Dining's

Motion to Conduct Independent Medical Examination

Hearing

Date: August 27, 2026

Background

On June

26, 2024, Plaintiffs O. and L. sued Defendants Global-Dining Inc.

("Global-Dining"), and Does 1-100 for negligence, sexual battery, intentional infliction of emotional distress, and false imprisonment. Plaintiffs allege that they were drugged and sexually assaulted at and following their visit to Global-Dining's restaurant, 1212 Bar and Restaurant, on July 3, 2022. (Complaint, ¶¶ 19-25.)

On October

18, 2024, Global-Dining answered Plaintiffs' complaint.

On January

7, 2025, Plaintiffs amended the complaint to name Treston Security Services, Inc. ("Treston Security") as Doe 1.

On August

27, 2025, Treston Security filed a substitution of attorney indicating that it would proceed pro per.

On October

1, 2025, Plaintiffs filed a Motion to Strike Treston Security's answer because Treston Security, a corporation, cannot represent itself in this action. On January 15, 2026, the Court granted Plaintiffs' motion and entered default against Treston.

On

February 11, 2026, Treston Security filed a substitution of attorney appointing Joan E. Cochran as its counsel of record.

On May 27,

2026, the Court set aside defaults entered against Treston Security, Mark Treston, and Maynor Darton.

On July

23, 2026, the Court granted Global-Dining's Motion for Leave to Amend Cross-Complaint to name L.'s mother as a cross-defendant.

On July

14, 2026, Global-Dining filed a Motion to Compel Plaintiffs' independent medical examinations. On August 14, 2026, the parties held an IDC with the Court on the motion to compel the independent medical examinations that resolved all the issues except for one: Global-Dining's expert believes that it is his ethical duty to only disclose the raw data from the examination to another psychiatrist, and not to Plaintiffs' counsel.

On August

14, 2026, Plaintiffs filed opposition. On August 20, 2026, Global-Dining filed a reply

Jury Trial

is set for November 2, 2026.

Motion

to Conduct Medical Examination

“If any

party desires to obtain discovery by a physical examination other than that described in Article 2 (commencing with Section 2032.210), or by a mental examination, the party shall obtain leave of court.” (Code Civ. Proc., § 2032.310, subd. (a).) “A motion for an examination under subdivision (a) shall specify the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the person or persons who will perform the examination. The motion shall be accompanied by a meet and confer declaration under Section 2016.040.” (Id. subd. (b).)

“The court

shall grant a motion for a physical or mental examination under Section 2032.310 only for good cause shown.” (Code Civ. Proc., § 2032.320, subd. (a).) Section 2032.320 subdivision (b) requires a motion for an IME to specify “the time, place, manner, conditions, scope, and nature of the examination” (Code Civ. Proc., § 2032.310 subd. (b).) Moreover, An order granting a physical or mental examination shall specify the person or persons who may perform the examination, as well as the time, place, manner, diagnostic tests and procedures, conditions, scope, and nature of the examination.” (Code Civ. Proc. § 2032.320, subd. (d).)

The

California Supreme Court has held that a prior, but substantially similar, statute allowing for IMEs “defines a showing of ‘good cause’ as requiring that the party produce specific facts justifying discovery and that the inquiry be relevant to the subject matter of the action or reasonably calculated to lead to the discovery of admissible evidence.” (Vinson v. Superior Court (1987) 43 Cal.3d 833, 840.)

Discussion

Since the

parties have agreed to parameters to conduct the Independent Medical Examinations, the only issue that remains for resolution is possession of the raw testing data. At the August 14, 2026 IDC, the parties appeared to agree that Global-Dining’s neuropsychologist, Dr. Thames, would send the raw data to Plaintiffs’ psychiatrist, Dr. Rosenberg. On August 14, 2026, Plaintiffs filed opposition arguing that Dr. Thames should either produce the data to Dr.

Rosenburg with a declaration confirming that she authorizes him to transmit the data to Plaintiffs' counsel or that Dr. Thames should be compelled to submit the data directly to counsel because Dr. Thames' ethical obligations are not legal restrictions on data production under the Discovery Act. (Opposition, p. 2.) In reply, Defendants argue that the Court's middle-ground solution is appropriate.

The argument on this motion focuses primarily on one case: *Randy's Trucking, Inc. v. Superior Ct.* (2023) 91 Cal.App.5th 818.

In *Randy's Trucking, Inc. v. Superior Ct.*, Angela Buttram and Devon Robins, passengers on a school bus that was rear-ended by a tractor-trailer operated by Randy's Trucking, sued Randy's Trucking and its driver for personal injury damages. (*Randy's Trucking, Inc. v. Superior Ct.*, *supra*, 91 Cal.App.5th at 824.) Buttram claimed that the accident caused a traumatic brain injury. (*Ibid.*) Randy's Trucking moved to compel Buttram's independent medical examination by their neuropsychologist after Buttram refused to allow the examination to proceed unless her attorney received all raw data and test information from the exam. (*Ibid.*) Randy's Trucking asked that the Court prohibit that the information be distributed to anyone other than a licensed psychologist or neuropsychologist. (*Ibid.*) The trial court granted Randy's Trucking's motion to compel the examination, but rejected its request to limit the data transmission because Plaintiffs did not have a psychologist or neuropsychologist expert. (*Ibid.*) As a result, Randy's Trucking's neuropsychologist recused herself because transmitting the data would violate her ethical obligations. (*Id.* at 825.) Two other neuropsychologists likewise refused to comply with the order. Randy's Trucking moved for reconsideration, which the trial court denied. (*Id.* at 831.) On the writ of mandate, Randy's Trucking asked the Court of Appeal to either modify the transmission order to require the transmission of the raw data to the plaintiffs' psychologist or vacate the order and enter a new order granting the motion. (*Id.* at 825.) The Court of Appeal found that the trial court did not abuse its discretion in ordering Randy's Trucking's expert to turn over the raw data because it acted within its discretion in finding that the plaintiffs' need for the material outweighed the expert's privacy interests and did not require Plaintiffs to retain another expert. (*Id.* at 641-642.)

The Court

described the “ethical interests” at issue in Randy’s Trucking as concerns over test confidentiality—mental health professionals license copyrighted tests from companies to diagnose patients. Accurate diagnosis depends on the patient’s ignorance of the test questions and parameters. (Randy’s Trucking, Inc. v. Superior Ct., supra, 91 Cal.App.5th at 837.) The “ethical interests” are a hybrid of medical ethics, copyright, and contractual concerns. Importantly, the Randy’s Trucking Court did not reject Randy’s Trucking’s proposal at all. It found that the trial court’s determination that the plaintiffs’ cross-examination concern and the fact that they did not have a retained expert outweighed the defendant’s expert’s confidentiality concerns was not an abuse of discretion.

This case

is different from Randy’s Trucking because Plaintiffs have a psychiatrist expert. Plaintiffs propose two options for resolving this issue: (1) require Defendants’ expert to sign a declaration stating that the data will be disclosed to Plaintiffs’ attorney by Plaintiffs’ psychologist; or (2) order the complete release. Plaintiffs rely on Randy’s Trucking to argue that the Court should order the data to be turned over completely, but they provide no justification for the affidavit, except that Dr. Thames’ declaration offers production only to a “retained psychologist, neuropsychologist, and/or neurologist expert.” Plaintiffs believe that their expert, a physician and psychiatrist, does not qualify, but do not explain why a psychiatrist’s ethical obligations would be different from Dr. Thames’ ethical obligations.

Here, the

Court agrees with the logic of the trial court in Randy’s Trucking to the extent that it will not require Plaintiffs to retain an expert specifically to receive the data. (Randy’s Trucking, Inc. v. Superior Ct., supra, 91 Cal.App.5th at 838 [“But as plaintiffs assert, they should not be forced to retain an expert to gain access to these materials. . .”].) Like Dr. Thames, Dr. Rosenberg treats mental health conditions and likely has a sufficient understanding of the ethical concerns about disclosing test materials to treat copyrighted test materials appropriately. The Court orders Global-Dining to disclose the raw test data to Dr. Rosenberg without Plaintiffs’ declaration, but under the proposed protective order. The Court will not interfere with Dr. Rosenberg’s professional discretion after he receives the data.

The audio

recording of the exam is a different matter. Under California law, such a

recording must be made available to the patient. (Code Civ. Proc. § 2032.530(a).)

The patient may then share that information with whomever she chooses.

Conclusion

The Motion

to Compel Independent Medical Examination is GRANTED.

The

parties are ordered to file a joint order containing the complete terms of the medical examinations pursuant to this order and the August 14, 2026, IDC by August 31, 2026, for the Court's signature.